

6.	<i>Gamo vs. J Star Auto Group, Inc.</i> 2017-00942930	Before the court is a motion by defendants J Star Auto Group, Inc. and Jared Merrell for an award of attorney fees following a remittitur issued by the Court of Appeal on October 17, 2025 (ROA 1453). The hearing is CONTINUED TO JUNE 11, 2026, AT 2:00 P.M. IN DEPARTMENT C23. This motion was initially set for a hearing on January 22, 2026, with supplemental briefing to be filed pursuant to code. On January 12, 2026, the court continued the hearing to March 5, 2026, to allow Plaintiff to address the notice of rejection of electronic filing at ROA 1470 as well as to submit the appropriate documents to substitute the proper party to replace the deceased Plaintiff. On March 5, 2026, the hearing was again continued to allow Plaintiff a further opportunity to address these matters. Plaintiff's counsel has now submitted a stipulation and order substituting "Ludivine M. Garno, as Executor of the Estate of Tirso Melendez Garno, Jr." as plaintiff in this action. That filing was recently rejected because certain party names are not spelled correctly and therefore that document cannot be used to make the necessary substitution of plaintiff. Moreover, and more importantly for purposes of this motion, Plaintiff has yet to file the supplemental opposition which was rejected at ROA 1470. The parties all apparently have the supplemental opposition, but the court does not. The court therefore CONTINUES the hearing of this motion one final time as stated above. Plaintiff is ordered to immediately file the same supplemental opposition which was previously served on Defendants, and which was rejected at ROA 1470. If Plaintiff does not file the supplemental opposition by May 18, 2026, the motion will be decided strictly on the briefs the court has received, meaning no supplemental opposition will be considered. No further briefing will be allowed. Defendants to give notice.
7	<i>In Re: The Petition of Cosmic Chakra LLC</i> 2026-01558882	Before the court is a petition by petitioner Cosmic Chakra LLC (Petitioner) for an order directing the California Secretary of State to reinstate Peitioner's corporate status to active. As more fully set forth below, the petition is GRANTED. Pursuant to Government Code section 12261, subdivision (a)(1), Petitioner put forth evidence showing

		the factual representations of LegalZoom and its agent Fahad Shaikh, which were contained in the termination document, were materially false and made in error. (Wegman Decl. ¶¶ 5-6; Robinson Decl. ¶¶ 4-7.) The terminating documents should not have been filed as Petitioner was instead only seeking a name change. The court directs the California Secretary of State to reinstate Petitioner effective the date a signed order is filed with the California Secretary of State. Petitioner's counsel is ordered to submit a proposed order granting the petition.
8.	Arnel Management Company vs. Jouini 2021-01223045	Before the court is the motion to vacate void judgment pursuant to Code of Civil Procedure section 473, subdivision (d) filed by defendant Abdelhedi Jouini (Jouini). For the reasons set forth below, the motion is GRANTED. "Under [Code of Civil Procedure] section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service." (<i>Ellard v. Conway</i> (2001) 94 Cal.App.4th 540, 544.) A motion under section 473, subdivision (d) to vacate a judgment allegedly void for lack of service must be brought within a "reasonable time" after entry of default. (Weil & Brown, Cal. Prac. Guide: Civil Proc. Before Trial (The Rutter Group 2025) ¶ 5:437.1, citing <i>California Capital Ins. Co. v. Hoehn</i> (2024) 17 Cal.5th 207, 212, 225-226 (disapproving prior authority that applied 2-year time limit to § 473(d) motions to vacate).) "[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void." (<i>Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371, internal quotes and citation omitted.) "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process, the burden is on the plaintiff to prove . . . the facts requisite to an effective service." (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413.) Jouini argues the default and possession judgment entered on November 2, 2021, and the default money judgment entered on August 3, 2023, are void for lack of personal jurisdiction because substituted service was not made in compliance with Code of Civil Procedure section 415.20, subdivision (b).